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Provision of January 16, 2025
Register of provisions
n. 8 of January 16, 2025

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia and Attorney Guido Scorza, Members, and
Secretary General Fabio Mattei;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016 (hereinafter, "Regulation");

HAVING REGARD TO the Code regarding the protection of personal data, containing provisions for the adaptation of the national legal system to Regulation (EU) 2016/679 (Legislative Decree of June 30, 2003, n. 196, as amended by Legislative Decree of August 10, 2018, n. 101, hereinafter "Code");

HAVING REGARD TO the complaint submitted pursuant to Article 77 of the Regulation by Mr. XX against Sicurnet Liguria s.r.l.;

HAVING EXAMINED the documentation on file;

HAVING REGARD TO the observations made by the Secretary General pursuant to Article 15 of the Guarantor's Regulation n. 1/2000;

REPORTING Prof. Pasquale Stanzione;

PREMISED

1. The complaint against the Company and the investigative activity.

With a complaint dated July 29, 2022, Mr. XX represented to this Authority that he had submitted to Sicurnet Liguria S.r.l. (hereinafter, the Company), on June 7, 2022, and June 9, 2022, a request to exercise the right to deletion of the corporate email account XX, pursuant to Article 17 of the Regulation, considering that the employment relationship with the Company had ceased on September 30, 2021, and that he had not received any feedback from the Company.

In the request of June 9, 2022, he also asked to "receive any emails received from October 1, 2021, to date that are not strictly related to my previous work activity."

On June 8, 2023, the Company, following an invitation to comply sent by the Department on March 9, 2023, sent its feedback, also to the complainant.

On that occasion, it stated that:

"the account [assigned to the complainant] has long been deactivated and, consequently, is no longer active" (see note of 8/6/2023 cited, p. 1);

"in his complaint, the [complainant] makes an express reference to the 'corporate email box' [...] this is because the email address indicated above was set up by Sicurnet Liguria s.r.l. to provide its clients with a reference within the company, with which to relate for any needs arising from the collaboration: the management of this address was entrusted to the [complainant] who, always in the name and on behalf of Sicurnet Liguria s.r.l., used it exclusively for purposes related to the business activity of the same company, his employer, which has no record of the [complainant] having used it for personal purposes" (see cited note, pp. 1, 2);

"subsequent to the termination of the employment relationship with the [complainant], Sicurnet Liguria s.r.l. needed to manage the email address solely for the purpose of collecting communications received from various clients, for the time necessary for their management through a different address" (see cited note, p. 2);

"during this period, no email was ever sent from the aforementioned email address; the postponement of its closure was necessary because all the clients who over the years have interacted with Sicurnet

Liguria s.r.l. through the [complainant] as a collaborator/employee of the company had this address as a reference point; this element, besides being a logical consequence of the relationships that develop between clients and companies, necessarily led to a not immediate deletion of the account since, for reasons of prevention as well, the communications that were received at the aforementioned address after the termination of the employment relationship with the [complainant] were responded to from another email address with which clients were informed to update their records and were also informed to replace it with a new email address belonging to another employee, who is still operating within the structure of Sicurnet Liguria s.r.l.” (see cited note, p. 3);

the Company “has not processed any personal data of the [complainant] either before or after the termination of the employment relationship; the indication of the initial of the name and surname of the same [complainant] in the ‘name’ of the email address does not constitute a relevant element for the application of the [data protection] regulations, since the hosting ‘sicurnetliguria.it’ demonstrates the creation and use of the email box for exclusive purposes of the company” (see cited note, pp. 3, 4).

On July 28, 2023, following a request for information, pursuant to Article 157 of the Code, made by the Department on June 28, 2023, the Company further represented that:

regarding the specific reasons for which the Company did not provide feedback within the terms set by Article 12 of the Regulation to the requests for the exercise of rights submitted by the complainant on June 7, 2022, and June 9, 2022, “the employment relationship between Sicurnet Liguria s.r.l. and the [complainant] was interrupted, by decision of the...

the same [claimant], suddenly. Sicurnet Liguria s.r.l. found it necessary to reorganize its structure also to acquire the necessary understanding of the elements related to the relationships with the numerous clients that were managed through the [claimant]; these tasks required efforts expended in the necessary time. Furthermore, Sicurnet Liguria s.r.l. needed to delve into the legal aspects concerning the relationship with the [claimant], also in relation to distinct circumstances unrelated to the employment contract” (see note 28/07/2023 cited, p. 1);

“regarding the cancellation of the account in question, unfortunately, we are unable to ascertain the exact date of its deletion” (see note cited, p. 2);

“after the termination of the employment relationship with the [claimant], the email account was used only to check the correspondence received. This was necessary to manage the numerous communications received from various clients and suppliers” (see note cited, p. 3);

“at the moment the [claimant]'s email box was deactivated, a function was activated in the general management panel of the email box of the domain called ‘non-existent recipients’ through which all incoming emails were automatically forwarded to a specific email that was constantly monitored” (see note cited, p. 3);

“Sicurnet Liguria s.r.l. could also have adopted the further option that provides for the sender to receive a notification that the message was addressed to a non-existent recipient; however, this option was not implemented because it would have resulted in the rejection of messages, consequently leading to the non-receipt of the same” (see note cited, p. 3);

“the communications that were received at the email with the initials of the [claimant] were responded to from another email address with an invitation to update the directories/records and to refer to other email addresses and other operators/collaborators of Sicurnet Liguria s.r.l. for any further requests” (see note cited, p. 3, 4);

“there is a company regulation that the [claimant], when performing his work for Sicurnet Liguria s.r.l., signed; however, within it, there is no reference to the use of the email account and, consequently, there is no discipline regarding the email addresses of the company with the related hypotheses of closure/deletion of accounts when a collaborator ceases his service” (see note cited, p. 4);

“the email address [assigned to the claimant] was set up by Sicurnet Liguria s.r.l. to provide its clients with a reference within the company” (see note cited, p. 4).

On September 23, 2023, the claimant submitted his counterarguments in which he stated that:

- “my requests for clarification (June 7 and 9, 2022) were sent to Sicurnet Liguria approximately 9 months after my last working day (September 30, 2021), a reasonable time, I believe, for any possible reorganization”;
- “the emails addressed to [the email address assigned to me] were probably redirected to another

company email address, but the sender did not receive any communication with ‘an invitation to update the directories/records and refer to...’.”

2. The initiation of the procedure and the Company's deductions.

On November 13, 2023, the Office notified the Company of the alleged violations of the Regulation found, with reference to Articles 5, paragraph 1, letters a), b), c), e), 12, 13, 15, 17 of the Regulation, pursuant to Article 166, paragraph 5, of the Code.

On December 13, 2023, the Company submitted its defense writings and on that occasion highlighted that:

“the reasons why the email address [assigned to the claimant] was not immediately deactivated after the interruption of the employment relationship with the [claimant] were limited to managing relationships with clients, for the time necessary to provide the same clients with an alternative address” (see note 13/12/2023, p. 2);

“it was necessary to collect all the references of the clients who had interacted with the company through the address [assigned to the claimant], before being able to manage them and communicate an alternative address” (see note cited, p. 2);

“such purposes can only be considered ‘adequate, relevant, and limited’, according to the letter and spirit of the norm contained in Article 5, paragraph 1, letter c of the regulation, given that the employment relationship between Sicurnet Liguria s.r.l. and the [claimant] was interrupted, at the decision of the [claimant], suddenly and the company, in the absence of any collaboration with the same [claimant], had the need to be aware of and manage the communications collected from the same former employee” (see note cited, p. 2);

“the processing was exclusively concerned with content related to the company's activity” (see note cited, p. 2);

“there are no elements from which to infer that there has been, on the part of Sicurnet Italia s.r.l., a use of the email address for purposes different from those indicated” (see note cited, p. 3);

“the processing of personal data for purposes different from those for which the personal data were initially collected is permitted if

compatible with the purposes for which the personal data were initially collected. In this case, no separate legal basis is required beyond that which allowed for the collection of personal data” (see cited note, p. 3);

“in the specific case, during the duration of the employment relationship between the parties, it is undisputed that the [claimant] consented to the use of an email address bearing their surname for purposes related to business activities; those same needs constituted the reason for the use of the email account for the time necessary for the transfer of the collected data” (see cited note, p. 3);

“such elements were communicated to the [claimant] with the note sent to the Data Protection Authority on June 8, 2023, in which the [claimant] was included in copy” (see cited note, p. 3);

“therefore, the conduct of Sicurnet Liguria s.r.l. was also in compliance with Article 13 of the Regulation and with Article 5 letters a) and b)” (see cited note, p. 3);

“the conduct adopted by Sicurnet Liguria s.r.l. was motivated by objective needs to avoid damage to its business activities, with consequent economic losses that would have arisen from the failure to manage the data collected from the [claimant] during the duration of the employment relationship” (see cited note, p. 4);

“such elements can only be considered relevant by the Authority for the purposes of archiving the procedure or, alternatively, for the application of the sanction at the minimum level permitted by the regulation” (see cited note, p. 4).

3. Outcome of the procedure.

3.1 Established facts and observations on the legislation regarding personal data protection.

As a result of the examination of the statements made to the Authority during the procedure, as well as the documentation acquired, it appears that the Company, as the data controller, has carried out some processing operations related to the claimant that are not compliant with the legislation on personal data protection, regarding the processing of the corporate email address assigned to them during the employment relationship.

In particular, the Company did not respond to a repeated request for the exercise of rights submitted

by the claimant and, moreover, arranged for the forwarding, to another constantly monitored email address of the Company, of incoming communications received after the termination of the employment relationship, to the email address assigned to the claimant, which was kept active for a significant period of time.

In this regard, it is highlighted that, unless the act constitutes a more serious offense, anyone who, in a proceeding before the Authority, falsely declares or certifies news or circumstances or produces false acts or documents is liable under Article 168 of the Code "Falsehood in declarations to the Authority and interruption of the execution of the tasks or the exercise of the powers of the Authority."

Article 5, paragraph 1, letter a), of the Regulation provides that data must be processed, among other things, in a correct manner (principle of fairness).

Article 5, paragraph 1, letters b) and c) of the Regulation states that personal data are "collected for specified, explicit, and legitimate purposes, and subsequently processed in a manner that is not incompatible with those purposes" (principle of purpose limitation) and that they are "adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed" (principle of data minimization).

Article 5, paragraph 1, letter e) of the Regulation provides that personal data are "kept in a form which permits identification of data subjects for no longer than is necessary for the purposes for which the data are processed" (principle of storage limitation).

Article 13 of the Regulation provides that the data controller is obliged to provide the data subject with all information regarding the essential characteristics of the processing before it begins.

Article 12 of the Regulation, to be read in conjunction with the provisions relating to the specific rights recognized by the legal system to the data subject, states that "the data controller takes appropriate measures to provide the data subject with all the information referred to in Articles 13 and 14 and the communications referred to in Articles 15 to 22 and Article 34 relating to the processing in a concise, transparent, intelligible, and easily accessible form, using clear and plain language [...]. The information is provided in writing or by other means, including, where appropriate, by electronic means. If requested by the data subject, the information may be provided orally, provided that the identity of the data subject is proven by other means" (paragraph 1). It is also provided that "the data controller facilitates the exercise of the rights of the data subject pursuant to Articles 15 to 22" (paragraph 2).

Paragraph 3 of the same article specifies that "the data controller provides the data subject with information regarding the action taken in response to a request under Articles 15 to 22 without undue delay and, in any event, no later than one month from the receipt of the request. This period may be extended by two months, if necessary, taking into account the complexity and number of requests. The data controller informs the data subject of such extension, and the reasons for the delay, within one month of receiving the request. If the data subject submits the request by electronic means, the information is provided, where possible, by electronic means, unless otherwise indicated by the data subject."

stated by the Company regarding the organizational needs following the termination of the employment relationship, the maintenance of the account assigned to the complainant and the activation of an automatic forwarding system for incoming emails constitutes a violation of the principles of data processing as outlined in Article 5, paragraph 1, letters b), c), and e) of the Regulation.

3.2.3 Conclusion.

In light of the established violations of Articles 12, 15, 17, and 5 of the Regulation, it is evident that the Company has failed to comply with its obligations as a data controller. The lack of response to the complainant's requests for the exercise of their rights, the failure to provide the necessary information regarding the denial of such requests, and the improper handling of personal data following the termination of the employment relationship warrant the imposition of administrative sanctions as stipulated in Article 83, paragraph 5, letter b) of the Regulation.

4. Recommendations.

In order to ensure compliance with the Regulation and to prevent further violations, it is recommended that the Company:

- Implement a clear protocol for responding to requests for the exercise of rights by data subjects, ensuring timely and adequate communication.
- Review and update its data retention and deletion policies to ensure that personal data is not retained longer than necessary.
- Provide training to staff on data protection obligations and the rights of data subjects under the Regulation.

5. Final Remarks.

The Company is urged to take immediate action to rectify the identified violations and to ensure that similar issues do not arise in the future. Failure to do so may result in further regulatory scrutiny and potential penalties.

support from the Company regarding the absence of personal data related to the complainant, in the context of the processing of the individualized email address assigned to the same, the conduct of the Company has resulted in the processing of personal data related to the complainant, which cannot be considered limited to the sole data concerning the surname: access to the individualized email account and to all incoming and outgoing communications contained therein inevitably results in the processing of personal data of the account holder. This is in light of the definitions of "personal data" and "processing," as per Article 4, paragraphs 1 and 2, of the Regulation, which necessarily also include data related to work activity (for "personal data" to be understood as "any information relating to an identified or identifiable natural person ('data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person"; for "processing" to be understood as "any operation or set of operations, performed with or without the aid of automated processes and applied to personal data or sets of personal data, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or otherwise making available, alignment, combination, restriction, erasure or destruction").

In this regard, it is specified that the exchange of electronic correspondence—whether related to work activity or not—on a company account of an individualized type constitutes a processing operation that allows for the knowledge of certain personal information related to the data subject (see "Guidelines of the Guarantor for electronic mail and the Internet," in G.U. No. 58 of 10/3/2007, specifically point 5.2, letter b), and that the Guarantor has already deemed it compliant with the principles regarding the protection of personal data that, after the termination of the employment relationship, the owner should proceed with the removal of the account, following its deactivation and the adoption of automatic systems aimed at informing third parties and providing them with alternative addresses related to their professional activity, also ensuring that appropriate measures are taken to prevent the viewing of incoming messages during the period in which such an automatic system is in operation (see among many, Provisions of December 1, 2023, No. 602, web document No. 9978536; December 4, 2019, No. 216, web document 9215890; February 1, 2018, No. 53, web document No. 8159221, point 3.4.).

The systematic and persistent activity of the company account, previously assigned to the complainant, even after the termination of the employment relationship and for a significant period during which the Company activated a forwarding system for incoming communications to another email address, in the absence of any specific, explicit, and legitimate purpose pursued, violates the principle of data minimization (Article 5, paragraph 1, letter c) of the Regulation) and of purpose limitation (Article 5, paragraph 1, letter b) of the Regulation) as well as of storage limitation (Article 5, paragraph 1, letter e) of the Regulation).

Regarding the violation of the principle of minimization, it is emphasized that the Company, with the described conduct, did not limit itself to processing data that is adequate, relevant, and limited to what is necessary in relation to the purposes for which it was processed (as instead required by Article 5, paragraph 1, letter c) of the Regulation). The same purpose declared by the Company ("management of customer relations") could have been pursued with processing methods compliant with data

protection regulations, as less invasive of the complainant's privacy, and this confirms the unnecessary nature of the processing carried out.

Still concerning the purpose declared by the Company, it is noted that the same (abstractly certainly lawful) cannot be considered, in this specific case, given the manner in which it was pursued, an element that renders the processing (i.e., forwarding of incoming communications to another account of the Company) compliant with the legal framework. The Company, in fact, accessed the conversations received at the email address assigned to the complainant; regarding these, it is specified that the content of the email messages, as well as the external data of the communications themselves and the attached files, concern forms of correspondence protected by guarantees of confidentiality also constitutionally safeguarded (Articles 2 and 15 of the Constitution). The protection of the same is therefore recognized by the legal system in favor of the recipient of the communications.

Regarding the violation of the principle of storage limitation, it is observed that the Company maintained the email account in question active, accessing it from the termination of the employment relationship (30/09/2021) until at least the submission of the request for the exercise of the complainant's rights on June 7, 2022, reiterated and supplemented on June 9, 2022, thus for a considerable period of time.

Furthermore, concerning the Company's statement that "in this case, during the validity of the employment relationship between the parties, it is undisputed that the [complainant] has provided... own consent to the use of an email address bearing their surname for purposes related to business activities; those same needs constituted the reason for using the email account for the time necessary for the transfer of the collected data" (see note 13/12/2023, p. 3) it is observed that such a reference to the consent of the complainant as an element to legitimize the infringement of the right to personal data protection of the data subject is not shareable nor does it appear relevant.

In this regard, it is first noted that the Company has not provided evidence of consent given by the complainant in this sense and formally obtained by the data controller; moreover, and in any case, precisely due to the power imbalance between the employer and the employee, it is unlikely, unless specific cases are identified on a case-by-case basis, that the employee freely gives their consent to the employer (see in this regard Guidelines on consent under the Regulation adopted by the EDPB on May 4, 2020, which, recalling Opinion 2/2017 on the processing of data in the workplace, pp. 6-7, states that "the Committee considers it problematic for the employer to process the personal data of current or future employees based on consent, as it is unlikely that this will be given freely. For most processing activities carried out in the workplace, the legitimate basis cannot and should not be the employee's consent (Article 6, paragraph 1, letter a)) considering the nature of the relationship between employer and employee"). This is especially true if giving consent would lead to a diminishment of the protections recognized to the data subject regarding personal data protection.

Finally, with reference to the Company's referral to the decision of the EU Court of Justice, section III, March 2, 2023, no. 268 (see note 13/12/2023, p. 3), it is noted that such a referral does not appear relevant considering the subject matter of the decision itself.

In light of the above analytically represented, it emerges that the conduct of the Company was carried out in violation of the provisions of Article 5, paragraph 1, letters b), c), and e) of the Regulation.

3.2.3 Violation of Articles 5 paragraph 1 letter a) and 13 of the Regulation.

It has also been established that the processing carried out by the Company on the individual corporate email account assigned to the complainant was done in the absence of adequate information.

As stated by the Company itself, even the existing company regulations did not contain references to the use of the email account "and, consequently, there is no regulation regarding the company's email addresses with the related hypotheses of closure/deletion of accounts when a collaborator ceases their service" (see note 28/07/2023, cited, p. 4).

Nor can the response to the invitation to comply from the Guarantor on March 9, 2023, which would have been provided in copy to the complainant on June 8, 2023, within the framework of the administrative procedure opened before the Authority following the complaint, be considered a suitable fulfillment of what is provided for in Article 13 of the Regulation, as claimed by the Company (see note 13/12/2023, p. 3).

This is because the obligation to provide adequate information, when personal data is collected from the data subject, must be fulfilled "at the moment when the personal data is obtained." It is evident, however, that this did not occur in the specific case, considering that some information requested regarding the processing carried out by the Company was provided only following the submission of the complaint and only after the opening of the investigation by the Authority.

It is emphasized in this regard that the rationale of what is provided for in Article 13 of the Regulation is to provide data subjects, prior to the commencement of the processing of personal data concerning them, with clear and specific indications regarding such processing: therefore, in order for it to be said that what is provided for in the cited article has been respected, it is necessary that the information provided in the notice fully describes the processing.

The Company, therefore, violated what is provided for in Article 13 of the Regulation - which constitutes a corollary of the principle of transparency referred to in Article 5, paragraph 1, letter a), of the Regulation - under which the data controller is required to provide the data subject in advance with all information relating to the essential characteristics of the processing (see Provv. March 1, 2007, no. 13 "Guidelines for email and internet" cited).

The conduct of the Company was also carried out in a manner inconsistent with what is provided for in Article 5, paragraph 1, letter a), of the Regulation as, within the employment relationship, the obligation to inform the employee is also an expression of the general principle of fairness.

4. Conclusions: declaration of unlawfulness of the processing. Corrective measures pursuant to Article 58, paragraph 2, Regulation.

For the above reasons, the Authority believes that the statements, documentation, and reconstructions provided by the data controller during the investigation do not allow for overcoming the observations notified by the Office with the act of initiating the procedure and are therefore unsuitable to allow for the archiving of the present procedure, as none of the cases provided for in Article 11 of the Guarantor Regulation no. 1/2019 apply.

The processing of personal data carried out by the

****Company and specifically the processing carried out, subsequent to the termination of the employment relationship, on the email account assigned to the complainant, among other things, in the absence of adequate information, and the lack of response to the request to exercise rights is indeed unlawful, in the terms outlined above, in relation to Articles 5, paragraph 1, letters a), b), c), d), 12, 13, 15, 17 of the Regulation.****

It is noted that the email address subject to processing has finally been deleted by the Company, although on a date not specified by the Company itself. The violation, established in the terms mentioned in the reasoning, cannot be considered "minor," taking into account the nature and severity of the violation itself, which concerned, among other things, the general principles of processing, as well as the degree of responsibility and the manner in which the supervisory authority became aware of the violation (see Recital 148 of the Regulation).

The Authority also deemed that the level of severity of the violation is medium, in light of all relevant factors in the specific case, and in particular the nature, severity, and duration of the violation, taking into consideration the nature, subject, or purpose of the processing in question as well as the number of affected individuals harmed by the damage and the level of damage suffered.

The Authority also considered the criteria related to the intentional or negligent nature of the violation and the categories of personal data affected by the violation as well as the manner in which the

supervisory authority became aware of the violation (see Article 82, paragraph 2, and Recital 148 of the Regulation).

****5.** Adoption of the injunction order for the application of the administrative pecuniary sanction and ancillary sanctions (Articles 58, paragraph 2, letter i), and 83 of the Regulation; Article 166, paragraph 7, of the Code).

The violation of Articles 5, paragraph 1, letters a), b), c), d), 12, 13, 15, 17 of the Regulation entails the application of the administrative sanction provided for by Article 83 of the Regulation.

The Guarantor, pursuant to Article 58, paragraph 2, letter i) of the Regulation and Article 166 of the Code, has the power to impose an administrative pecuniary sanction provided for by Article 83 of the Regulation, through the adoption of an injunction order (Article 18, Law of November 24, 1981, No. 689), in relation to the processing of personal data carried out by Sicurnet Liguria S.r.l., of which the unlawfulness has been established, in the terms outlined above.

It is deemed necessary to apply paragraph 3 of Article 83 of the Regulation where it provides that "if, in relation to the same processing or related processing, a data controller [...] violates, intentionally or negligently, various provisions of this Regulation, the total amount of the administrative pecuniary sanction does not exceed the amount specified for the most serious violation," the total amount of the sanction is calculated so as not to exceed the maximum penalty provided for by the same Article 83, paragraph 5.

With reference to the elements listed in Article 83, paragraph 2 of the Regulation for the purpose of applying the administrative pecuniary sanction and its quantification, considering that the sanction must be "effective, proportionate, and dissuasive in each individual case" (Article 83, paragraph 1 of the Regulation), it is represented that, in the case at hand, the following circumstances have been taken into account:

- the significant severity of the violation, as it also concerned cases punished more severely due to the interest protected by the violated norms (regarding the principles of fairness, minimization, limitation of storage, and limitation of purpose; the right to information; the exercise of the rights of the data subjects);
- the severity of the violation, which involved the use of the individual corporate email address following the termination of the employment relationship;
- the duration of the violation;
- the number of affected individuals involved in the established violations, which is one;

with reference to the intentional or negligent nature of the violation and the degree of responsibility of the controller, the objective elements of the Company's conduct and the degree of responsibility of the same, which violated the duty of diligence, provided for by the legal system, and did not comply with the regulations on data protection, in relation to multiple provisions; indeed, the Company, during the proceedings, repeatedly stated that the processing related to the individual corporate email address assigned to a worker does not involve the processing of personal data other than the surname of the data subject. This despite the public availability online of numerous measures from the Authority and rulings from the jurisprudence in this area.

It is also believed that the economic conditions of the offender, determined based on the revenues achieved by the Company with reference to the abbreviated financial statements for the year 2023 (the latest available), are relevant in this specific case, due to the aforementioned principles of effectiveness, proportionality, and dissuasiveness to which the Authority must adhere in determining the amount of the sanction (Article 83, paragraph 1, of the Regulation).

In light of the above-mentioned elements and the evaluations made, it is deemed appropriate, in this specific case, to apply to Sicurnet Liguria S.r.l. the administrative pecuniary sanction of... payment of an amount equal to euro 8,000 (eight thousand/00).

In this context, it is also considered that, pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Regulation of the Guarantor No. 1/2019, the publication of this section

containing the injunction order on the Guarantor's website should proceed.

This is in consideration of the concrete characteristics of the case under consideration, particularly evaluating the conduct of the Company which, during the investigation, confirmed its belief that it did not process personal data of the complainant in the context of the processing of the individualized corporate email account assigned to the same. From this circumstance, the absence of basic essential knowledge regarding the processing of personal data on the part of the Company emerges.

ALL OF THIS PREAMBLE, THE GUARANTOR

pursuant to Articles 57, paragraph 1, letter f) and 83 of the Regulation, notes the unlawfulness of the processing carried out by Sicurnet Liguria S.r.l. represented by its legal representative, with registered office at Via Fieschi 20/1 (GE), Tax Code 01426730998, as stated in the reasoning, for the violation of Articles 5, paragraph 1, letters a), b), c), d), 12, 13, 15, 17 of the Regulation;

ORDERS

pursuant to Article 58, paragraph 2, letter i) of the Regulation, the same Sicurnet Liguria S.r.l. to pay the sum of euro 8,000 (eight thousand/00) as an administrative pecuniary sanction for the violations indicated in this provision.

THEREFORE ENJOINS

Sicurnet Liguria S.r.l. to pay the aforementioned sum of euro 8,000 (eight thousand/00), according to the methods indicated in the annex, within thirty days from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to Article 27 of Law No. 689/1981. It is represented that pursuant to Article 166, paragraph 8 of the Code, the offender retains the option to settle the dispute by paying - always according to the methods indicated in the annex - an amount equal to half of the imposed sanction within the term provided for the filing of the appeal as indicated below, in Article 10, paragraph 3, of Legislative Decree No. 150 of September 1, 2011.

DISPOSES

pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Regulation of the Guarantor No. 1/2019, the publication of the injunction order on the Guarantor's website;
pursuant to Article 154-bis, paragraph 3 of the Code and Article 37 of the Regulation of the Guarantor No. 1/2019, the publication of this provision on the website of the Authority;
pursuant to Article 17 of the Regulation of the Guarantor No. 1/2019, the annotation of the violations and the measures adopted in accordance with Article 58, paragraph 2 of the Regulation, in the internal register of the Authority provided for by Article 57, paragraph 1, letter u) of the Regulation.

Pursuant to Article 78 of the Regulation, as well as Articles 152 of the Code and 10 of Legislative Decree No. 150/2011, an appeal against this provision may be submitted to the ordinary judicial authority, with a petition filed at the ordinary court of the place identified in the same Article 10, within thirty days from the date of communication of the provision itself, or sixty days if the appellant resides abroad.

Rome, January 16, 2025

THE PRESIDENT

Stanzione

THE REPORTER

Stanzione

THE SECRETARY GENERAL

Mattei